Westbrook City Council

~ Committee of the Whole ~

Date: Monday, September 14, 2026
Time: 7:00 PM (immediately following the Regular meeting and executive session)
Location: Westbrook High School (Room 114), 125 Stroudwater St. (Hybrid via Zoom)
Video: https://vimeo.com/1226754892
Packet: https://www.westbrookmaine.gov/AgendaCenter/ViewFile/Agenda/_09142026-1029

Timestamps below are clickable [0:00]-style links — they jump straight to that moment in the video.

This summary highlights the meeting's key discussions and decisions, with direct quotes and timestamps for verification — it is not a substitute for watching the full meeting. *This Committee of the Whole session and the Regular City Council meeting that preceded it the same night share this one video recording; this summary covers only the Committee of the Whole portion, which began roughly 45 minutes after the Regular meeting recessed into executive session. See the separate September 14, 2026 Regular Meeting summary for the first part of the evening. For complete context, nuance, and anything not covered here, watch the full video at the link above. (Produced by: WestbrookCurrents.com)*

Call to Order & Referral of July 20 Items

Housekeeping Referral: Four Boards Reviewed July 20 Formally Sent to Council

[1:47:52]

Discussion Summary

Councilor Gary Rairdon opened the session, identifying himself as Chair of the Committee of the Whole — a distinct role from the City Council Presidency (held by President Munro). Roll call: six of seven members present (Councilor McCambridge absent).

This was the second of at least three planned sessions reviewing the City's comprehensive boards/commissions/committees (BCC) ordinance overhaul, continuing the review begun July 20, 2026. Before taking up tonight's new items, the Committee noted that the four boards reviewed July 20 (Board of Assessment Review, Board of Trustees of Woodlawn Cemetery, Fair Hearing Authority, and Library Advisory Committee) had never actually been formally referred to City Council for final adoption — an oversight corrected with a motion tonight.

Key Decisions

✓ Motion to refer all four July 20 items to City Council passed by unanimous roll call, 6–0.

Action Items

None.

Public Safety Commission — Review Tabled

[1:52:28] Before staff could present their findings on the Public Safety Commission (planned for review tonight alongside three other boards), Commission Chair Mike Fandel spoke briefly, noting he'd met with City staff that afternoon to share his concerns and would continue that dialogue.

Commission Secretary Dustin Slate, unable to attend in person, submitted a detailed written comment read into the record by the Chair, raising three specific compliance concerns the draft ordinance amendment did not address:

> *"Section 80-3 of the Code requires the Public Safety Commission to draft, adopt, and publish rules governing how police, fire, and communication employees are hired and promoted... that documentation simply does not exist... [Section 80-6] says that only the Commission 'shall keep records of its proceedings'... there is no formal workflow on how these records are created, retained, or made available... in my opinion, the city is currently in violation of Maine Freedom of Access Act."*

— Dustin Slate, Secretary, Public Safety Commission (letter read into the record) [1:53:10]

Slate's letter also flagged a third issue: Section 80-7's required 24-hour advance public notice for Commission business is not being posted, which he characterized as a likely third Freedom of Access Act compliance gap. He asked that the ordinance review address all three issues rather than let them persist through another review cycle.

Key Decisions

✓ Motion to table the Public Safety Commission portion of tonight's review [1:56:45] passed by unanimous roll call, 6–0, to allow staff time to incorporate this feedback before returning with a revised proposal.

Zoning Board of Appeals

Enforcement Appeals Routed to Court; Shoreland Zoning Inconsistency Fixed

[1:57:24]

Found on page 12 of the packet.

Discussion Summary

Assistant City Administrator Jenny Franceschi presented staff's findings: the board's purpose, five-member-plus-two-alternate structure, and duties were all found clear and appropriate with no changes proposed. The bulk of the amendment addresses scope of authority, per legal counsel's recommendation: enforcement actions by the Code Enforcement Officer would no longer be appealable to the ZBA (violators would instead seek remedy through the courts), preserving the City's practice of pursuing voluntary compliance rather than mandatory immediate enforcement; this change touches numerous ordinance chapters (Building Construction, Electrical Standards, Fire Protection, Stormwater Management, Streets and Sidewalks, Weapons and Explosives, and Land Use). A related fix corrects an inconsistency the ZBA's own chair flagged: Shoreland Zoning Permit appeals of Planning Board decisions currently route to the ZBA, unlike every other Planning Board appeal (which goes to court) — this amendment aligns Shoreland Zoning with that standard practice.

Councilor Turcotte raised a related question: current ordinance language bars a sitting councilor's spouse from serving on the ZBA (a Maine statutory requirement), but no equivalent restriction exists for the Planning Board, where her own husband currently serves. City Solicitor Cameron Ferrante confirmed the ZBA restriction is state-mandated while the Planning Board restriction is not, and agreed to research whether the City should apply a consistent standard across both bodies. Discussion also touched on why ward-specific seat requirements have been removed citywide over time, to ease recruitment and staffing, as illustrated by a past Public Safety Commission vacancy that went unfilled for roughly two years before a ward requirement was dropped.

Key Decisions

✓ Referred to City Council for consideration by unanimous roll call, 6–0.

Action Items

None.

Planning Board

Scope Cleanup; Removal Procedure & Alternate-Voting Q&A [2:10:17]

Found on page 30 of the packet.

Discussion Summary

Franceschi reported the board's purpose, seven-member-plus-two-alternate size, and duties were all found appropriate. The scope-of-authority section required updating to remove outdated language suggesting Planning Board authority over fee-setting, contracts, budget management, or Capital Improvement Program decisions — functions that conflict with the City Charter and the board does not actually perform. Clerical cleanup includes addressing gendered language, extending the required report-back period to Council from 60 to a 90-day minimum, and removing an unnecessary savings provision and outdated public-records language.

Councilor Chau asked why the Planning Board alone has an explicit removal procedure (requiring Mayor action sustained by a two-thirds Council vote) when other boards don't specify one [2:14:04]; staff explained the ZBA's removal process (and its spousal restriction) comes from state statute directly, while the Planning Board's removal process isn't covered by state law and so needed explicit ordinance language, with a higher threshold reflecting the board's more highly political role. Chau also asked about alternates' voting rights, prompting a separate explainer: all seven voting members' votes count officially even when alternates participate fully in discussion.

Councilor Turcotte suggested the ordinance could explicitly empower board members to flag a colleague for removal “for cause” (citing a hypothetical of a member who stopped paying city taxes) rather than leaving that authority solely with the Mayor and Council [2:19:31]; staff agreed to review the wording.

Key Decisions

✓ Referred to City Council for consideration by unanimous roll call, 6–0.

Action Items

None.

Village Review Overlay Zone (VROZ) Committee — Recommended for Elimination

Committee Sunset Recommended; Design Standards Continue Under the Planning Board [2:22:04]

Found on page 36 of the packet.

Discussion Summary

This three-member advisory committee, which reviews downtown development proposals against the City's Village Review Overlay Zone architectural standards, was established informally in 2007 and formally codified as a Planning Board advisory body in 2019. Franceschi gave extensive historical context: the committee's

original purpose was to encourage (not mandate) architectural quality in downtown redevelopment, predating the specific VROZ standards eventually adopted in 2017. Along the way, the committee was also inserted into the City's demolition-delay ordinance, which inadvertently created a protracted permitting process for routine, non-historic demolitions (garages, sheds, blighted structures) — a flaw in the ordinance's drafting, not the committee's fault.

Staff's recommendation: sunset the VROZ Committee as a standalone body, given that Planning Board review of downtown projects has grown significantly more detailed over the past decade and now duplicates much of what the VROZ Committee does, while the committee itself has dwindled to one or two meetings a year, conducted by Zoom at an early-morning time chosen for members' convenience, with limited public accessibility. Under the proposed changes, the architectural standards themselves would remain fully in effect, enforced directly by the Planning Board and staff; demolition permits would require formal review only for structures listed or eligible for the National Register of Historic Places.

Councilor Chau asked several clarifying questions distinguishing the VROZ Committee (being eliminated) from the VROZ standards (continuing under Planning Board review) [2:31:37], and asked what staff heard from the committee's own members when the sunset idea was raised; staff reported an understandably mixed initial reaction, but that members offered to help update the underlying standards going forward. Committee Chair Rairdon voiced support, noting that moving review to the Planning Board level, where public participation is already an established part of the process, should actually strengthen community input on what is often a subjective, aesthetics-driven review.

Key Decisions

✓ Referred to City Council for consideration by unanimous roll call, 6–0.

Action Items

None.

Closing

Staff Thanked, Meeting Adjourned [2:40:21]

Discussion Summary

Chair Rairdon thanked staff for their work on the boards/commissions/committees review project, noting tonight's referrals will be taken up for final consideration by the full City Council. No further business; meeting adjourned.

Key Decisions

✓ Motion to adjourn approved.

Action Items

None.

How this was made

This summary was produced from the meeting video (linked above, hosted on the City's Vimeo showcase), which is shared with the Regular City Council meeting that preceded it the same night. The audio was downloaded with Downie 4 and transcribed with speaker diarization using MacWhisper. Claude (Anthropic's AI) cross-checked names and figures against the official packet and the city council roster, attributed speakers from context (introductions, roll-call order, direct address by the presiding officer) rather than the raw diarization labels alone, and drafted this summary and the quoted excerpts. Quotes are lightly cleaned of filler words/false starts but not reworded. Review tier: Not reviewed.

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